THE NATIONAL COMPANY LAW TRIBUNAL

NEW DELHI, BENCH-IV

COMPANY PETITION NO. CA (CAA)-51(ND) 2021

Under Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

In the matter of:
Scheme of Amalgamation
OF

ABK CONSULTANTS PVT LTD

.....APPLICANT COMPANY NO. 1/TRANSFEROR COMPANY NO. 1

AND

CAPRICORN HEALTH SERVICES PVT LTD

... APPLICANT COMPANY NO. 2/TRANSFEROR COMPANY NO. 2

AND

HARMONIOUS HOSPITALITY PVT LTD

... APPLICANT COMPANY NO. 3/TRANSFEROR COMPANY NO. 3

AND

DEVAVANI LIFESTYLE PVT LTD

APPLICANT COMPANY NO. 4/TRANSFEROR COMPANY NO. 4

AND

MAX VENTURES PVT LTD

... APPLICANT COMPANY NO. 5/TRANSFEROR COMPANY NO. 5

AND

NURTURE HEALTH SERVICES PVT LTD

....APPLICANT COMPANY NO. 6/TRANSFEROR COMPANY NO. 6

AND

RAMA KRISHNA COLD-CHEM LTD

...APPLICANT COMPANY NO. 7/TRANSFEROR COMPANY NO. 7

AND

SOLACE HOTELS AND HOSPITALITY SERVICES PVT LTD

... APPLICANT COMPANY NO. 8/TRANSFEROR COMPANY NO. 8

AND

LEO RETAILING AND HEALTH SERVICES PVT LTD

....APPLICANT COMPANY NO. 9/TRANSFEROR COMPANY NO. 9

WITH

MAX VENTURES INVESTMENT HOLDINGS PVT LTD

....APPLICANT COMPANY NO. 10/TRANSFEREE COMPANY

Judgment delivered on: ***31.12.2021***

CORAM:

SHRI DHARMINDER SINGH, MEMBER (J)

SHRI PRASANTA KUMAR MOHANTY, MEMEBR (T)

ORDER

PER SHRI DHARMINDER SINGH (MEMBER-JUDICIAL)

1. This application has been jointly filed by the Applicant Companies under Sections 230 and 232 of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and the National Company Law Tribunal Rules, 2016, duly supported by separate affidavits of the Applicant Companies, seeking dispensation/convening of the meetings of the shareholders and creditors of all the applicant companies, for approval of the proposed Scheme of Amalgamation as contemplated between the applicant companies. The said Scheme of Amalgamation (hereinafter referred to as the "Scheme") has been placed on record along with the joint applications.

2. It is represented that the registered offices of all the applicant companies are situated in New Delhi and therefore the subject matter of this joint applications fall within the Jurisdiction of this Bench.

3. M/s ABK Consultants Pvt Ltd (Transferor Company No.1) was incorporated on March 12, 2008 as a private limited company. The Authorized Share Capital of the Transferor Company no.1 is Rs. 1,00,000/- divided into 10,000 equity shares of Rs. 10/- each. The issued, subscribed and paid up share capital of the Company is Rs. 1,00,000/- divided into 10,000 equity shares of Rs. 10/- each. The registered office of

the Transferor Company no 1 is situated at 15, Dr. APJ Abdul Kalam Road, New Delhi-110011.

4. It is submitted that the transferor Company No. 1 has 3 Equity Shareholders and all the three equity shareholders have given their consent affidavits to the Scheme constituting 100% in value and 100% in number. There is one debenture holder in the transferor company no. 1, consent of whom has been placed on record. It is further represented by the counsel for Applicants that the transferor company no 1 has no secured creditor and only one unsecured creditor. The sole unsecured creditor has given his consent affidavit in favour of the Scheme. The certificates of chartered accountant in respect of creditors have also been placed on record. Since there is no secured creditor in the company the requirement of convening of the meeting of secured creditors does not arise. In relation to the shareholders, debenture holder and unsecured creditor, the transferor company no.1, seeks dispensation from convening and holding of their meetings on the ground that all the shareholders and sole unsecured creditor have given consent in favour of the Scheme.

5. M/s Capricorn Health Services Pvt Ltd (Transferor Company No. 2) was incorporated on the September 2, 2008. The registered office of the Company is situated at Max House, 1, Dr. Jha Marg, Okhla, New Delhi-

110020. The Authorized Share Capital of the company is Rs. 1, 00,000/- divided into 10,000 equity shares of Rs. 10/- each. The issued, subscribed and paid up share capital of Company is Rs. 1, 00,000/- divided into 10,000 equity shares of Rs.10/- each. It's further submitted that the transferor Company No 2 has also issued 21,20,750 Un-secured Compulsorily Convertible Debentures of Rs. 100/- each aggregating Rs. 21,20,75,000/-

6. It is submitted that Transferor Company No. 2 has 6 Equity Shareholders and consent affidavits from 5 of the shareholders constituting 80.70% in value have been obtained. There is one debenture holder in the transferor company no. 2, consent of whom has been placed on record. It is further represented that the Transferor Company No.2 has no secured creditors and only one unsecured creditor. The certificate of chartered accountant in respect of creditors has also been placed on record. The sole unsecured creditor has given his consent affidavit in favour of the Scheme In relation to the shareholders, the transferor company seeks directions for convening of meeting of Equity Shareholders. In respect of the unsecured creditors and debenture holders the transferor company no.2, seeks dispensation from convening and

holding of their meetings on the ground that the sole unsecured creditor and debenture holder have given consent in favour of the Scheme.

7. M/s Harmonious Hospitality Pvt Ltd (Transferor Company No. 3) was incorporated on the August 16, 2012. The registered office of the Company is situated at Max House, 1, Dr. Jha, Marg Okhla, New Delhi-110020. The Authorized Share Capital of the company is Rs. 1, 00,000/- divided into 10,000 equity shares of Rs. 10/- each. It's further submitted that the transferor Company No 3 has also issued 11,72,130 Un-secured Compulsorily Convertible Debentures of Rs. 100/- each aggregating Rs. 11,72,13,000/-

8. It is submitted that Transferor Company No. 3 has 6 Equity Shareholders and consent affidavits from 5 of the shareholders constituting 99.99% in value have been obtained. There is one debenture holder in the transferor company no. 3, consent of whom has been placed on record. It is further represented that the Transferor Company No.3 has no secured creditors and only one unsecured creditor. The certificate of chartered accountant in respect of creditors has also been placed on record. The sole unsecured creditor has given its consent affidavit in favour of the Scheme. In respect of the equity shareholders, unsecured creditors and debenture holders the transferor company no.3, seeks

dispensation from convening and holding of their respective meetings on the ground that the shareholders constituting 99.99% in value, the sole unsecured creditor and sole debenture holder have given consent in favour of the Scheme.

9. M/s Devavani Lifestyle Pvt Ltd (Transferor Company No. 4) was incorporated on the August 16, 2012. The registered office of the Company is situated at Max House, 1, Dr. Jha, Marg Okhla, New Delhi-110020. The Authorized Share Capital of the company is Rs. 1,00,000/- divided into 10,000 equity shares of Rs. 10/- each. The issued, subscribed and paid up share capital of Company is Rs. 1, 00,000/- divided into 10,000 equity shares of Rs.10/- each. It's further submitted that the transferor Company No 4 has also issued 15,510 Un-secured Compulsorily Convertible Debentures of Rs. 100/- each aggregating Rs. 15,51,000/-

10. It is submitted that Transferor Company No. 4 has 6 Equity Shareholders and consent affidavits from 5 of the shareholders constituting 99.99% in value have been obtained. There is one debenture holder in the transferor company no. 4, consent of whom has been placed on record. It is further represented that the Transferor Company No.4 has no secured creditors and only one unsecured creditor. The certificate of

chartered accountant in respect of creditors has also been placed on record. The sole unsecured creditor has given its consent affidavit in favour of the Scheme. In respect of the equity shareholders, unsecured creditors and debenture holders the transferor company no.4, seeks dispensation from convening and holding of their respective meetings on the ground that the shareholders constituting 99.99% in value, the sole unsecured creditor and sole debenture holder have given consent in favour of the Scheme.

11. M/s Max Ventures Pvt Ltd (Transferor Company No. 5) was incorporated on the August 30, 2010 as 'Max & Company Ventures Pvt Ltd' later own the name of the Company was changed to its present name i.e. 'Max Ventures Pvt Ltd' vide fresh certificate of incorporation dated June 1, 2011. The registered office of the Company is situated at Max House, 1, Dr. Jha ,Marg Okhla, New Delhi-110020. The Authorized Share Capital of the company is Rs. 1,00,000/- divided into 10,000 equity shares of Rs. 10/- each. The issued, subscribed and paid up share capital of Company is Rs. 1, 00,000/- divided into 10,000 equity shares of Rs.10/- each. It's further submitted that the transferor Company No. 5 has also issued 334,37,340 Un-secured Compulsorily Convertible Debentures of Rs. 100/- each aggregating Rs. 334,37,34,000/-

12. It is submitted that Transferor Company No. 5 has 6 Equity Shareholders and consent affidavits from 5 of the shareholders constituting 50.30% in value have been obtained. There is one debenture holder in the transferor company no. 5, consent of whom has been placed on record. It is further represented that the Transferor Company No. 5 has one secured creditor and one unsecured creditor. The sole secured creditor has been paid off whereas only one unsecured creditor has given its consent affidavit in favour of the Scheme. The certificate of chartered accountant in respect of creditors has also been placed on record. In relation to the shareholders, the transferor company seeks directions for convening of meeting of Equity Shareholders. In respect of the unsecured creditors and debenture holders the transferor company no.5, seeks dispensation from convening and holding of their respective meetings on the ground that the sole unsecured creditor and debenture holder have given consent in favour of the Scheme. Since the sole secured creditor has been fully paid off by the company the requirement of convening of the meeting of secured creditor does not arise.

13. M/s Nurture Health Services Pvt Ltd. (Transferor Company No. 6) was incorporated on the September 1, 2008. The registered office of the Company is situated at Max House, 1, Dr. Jha Marg, Okhla, New Delhi-

110020. The Authorized Share Capital of the company is Rs. 1,00,000/- divided into 10,000 equity shares of Rs. 10/- each. The issued, subscribed and paid up share capital of Company is Rs. 1, 00,000/- divided into 10,000 equity shares of Rs.10/- each.

14. It is submitted that Transferor Company No. 6 has 6 Equity Shareholders and consent affidavits from 5 of the shareholders constituting 50.30% in value have been obtained. It is further represented that the Transferor Company No. 6 has no secured creditor and only one unsecured creditor. The sole unsecured creditor has given its consent affidavit in favour of the Scheme. The certificate of chartered accountant in respect of creditors has also been placed on record. In relation to the shareholders, the transferor company seeks directions for convening of meeting of Equity Shareholders. In respect of the unsecured creditors and debenture holders the transferor company no.6, seeks dispensation from convening and holding of their respective meetings on the ground that the sole unsecured creditor and debenture holder have given consent in favour of the Scheme.

15. M/s Rama Krishna Cold-Chem Limited (Transferor Company No. 7) was incorporated on the February 18, 1997. The registered office of the Company is situated at Max House, 15, Dr. APJ Abdul Kalam Road, New

Delhi-110011. The Authorized Share Capital of the company is Rs. 60,00,000/- divided into 6,00,000 equity shares of Rs. 10/- each. The issued, subscribed and paid up share capital of Company is Rs. 60,00,000/- divided into 6,00,000 equity shares of Rs.10/- each. It's further submitted that the transferor Company No. 7 has also issued 1,85,000 Un-secured Compulsorily Convertible Debentures of Rs. 100/- each aggregating Rs. 1,85,00,000/-

16. It is submitted that Transferor Company No. 7 has 7 Equity Shareholders and consent affidavits from all the shareholders constituting 100% in value and numbers have been obtained. It is further represented that the Transferor Company No.7 has no secured creditors and three unsecured creditors. The certificate of chartered accountant in respect of creditors has also been placed on record. All the unsecured creditors have given their consent affidavits in favour of the Scheme. Since there are no secured creditors in the company the requirement of convening of their meeting does not arise. In respect of the shareholders and unsecured creditors the transferor company no.7, seeks dispensation from convening and holding of their respective meetings on the ground that the all the shareholders and all the unsecured creditors have given consent in favour of the Scheme.

17. M/s Solace Hotels and Hospitality Services Pvt Ltd (Transferor Company No. 8) was incorporated on the December 2, 2009. The registered office of the Company is situated at Max House, 1, Dr. Jha ,Marg Okhla, New Delhi-110020. The Authorized Share Capital of the company is Rs. 1,00,000/- divided into 10,000 equity shares of Rs. 10/- each. The issued, subscribed and paid up share capital of Company is Rs. 1, 00,000/- divided into 10,000 equity shares of Rs.10/- each. It's further submitted that the transferor Company No. 8 has also issued 4,10,920 Un-secured Compulsorily Convertible Debentures of Rs. 100/- each aggregating Rs. 4,10,92,000/-

18. It is submitted that Transferor Company No. 8 has 6 Equity Shareholders and consent affidavits from 5 of the shareholders constituting 50.30% in value and 5 in numbers have been obtained. It is further represented that the Transferor Company No.8 has no secured creditors and only one unsecured creditor. The meeting of Equity shareholders of the Transferor Company No. 8 is proposed to be convened to consider and approve the proposed scheme of Amalgamation. The certificate of chartered accountant in respect of creditors has also been placed on record. Since there is no secured creditor in the company the requirement of convening of their meeting does not arise. In respect of the

unsecured creditors the transferor company no.8, seeks dispensation from convening and holding of their meeting on the ground that the all the shareholders and all the unsecured creditors have given consent in favour of the Scheme.

19. M/s Leo Retailing and Health Services Pvt Ltd (Transferor Company No. 9) was incorporated on the September 1, 2008. The registered office of the Company is situated at Max House, 1, Dr. Jha ,Marg Okhla, New Delhi-110020. The Authorized Share Capital of the company is Rs. 1,00,000/- divided into 10,000 equity shares of Rs. 10/- each. The issued, subscribed and paid up share capital of Company is Rs. 1, 00,000/- divided into 10,000 equity shares of Rs.10/- each. It's further submitted that the transferor Company No. 9 has also issued 1,88,02,160 Un-secured Compulsorily Convertible Debentures of Rs. 100/- each aggregating Rs. 188,02,16,000/-

20. It is submitted that Transferor Company No. 9 has 6 Equity Shareholders and consent affidavits from 5 of the shareholders constituting 50.30% in value have been obtained. It is further represented that the Transferor Company No.9 has no secured creditors and three unsecured creditors. The meeting of Equity shareholders of the Transferor Company No. 9 is proposed to be convened to consider and approve the

proposed scheme of Amalgamation. The certificate of chartered accountant in respect of creditors has also been placed on record. Out of 3 unsecured creditors 2 unsecured creditors have given their consent affidavits in favour of the Scheme constituting 99.99% in value. Therefore, in respect of unsecured creditors prayer have been made to dispense the requirement of convening of their meeting. In respect of secured creditors since, there is no secured creditor in the company the requirement of convening of their meeting does not arise.

21. M/s Max Ventures Investment Holdings Pvt Ltd (Transferee Company No. 10) was originally incorporated as 'Dynavest India Pvt Ltd' on the February 26, 1988. Subsequently, the name of the Company was changed to 'Max Ventures Investment Holdings Pvt Ltd' on May 1, 2015. The registered office of the Company is situated at Max House, 1, Dr. Jha ,Marg Okhla, New Delhi-110020. The Authorized Share Capital of the Transferee Company is Rs. 493,40,50,000/- divided into 37,59,35,000 equity shares of Rs. 10/- each aggregating Rs. 3,75,93,50,000/-; 20,000 11% Non-cumulative redeemable preference share of Rs 100 each aggregating Rs 20,00,000/-; 24,40,000 12.50% Non-Cumulative redeemable preference shares pf Rs.100 each aggregating Rs. 24,40,00,000; 79,09,000 5% Non-cumulative redeemable preference

shares of Rs. 100 each aggregating Rs. 79,09,00,000/-; 1,500 9% Non-cumulative redeemable preference shares of Rs. 100 each aggregating Rs.1,50,000/-; 250,000 10% Non-cumulative redeemable preference shares of Rs. 100/- each aggregating Rs. 2,50,00,000/-; 40,000 12% Non-Cumulative redeemable preference shares of Rs. 100/- each aggregating Rs.40,00,000/-; 10,00,000 7% Compulsory convertible preference shares of Rs. 100/- each aggregating Rs. 10,00,00,000/- and 86,500 6% Non-cumulative redeemable preference share of Rs. 100/- each aggregating Rs.8,65,00,000/- . The issued, subscribed and paid up share capital of Company is Rs.7,15,120/- divided into 71,512 equity shares of Rs.10/- each. It's further submitted that the transferee Company No. 10 has also issued 40,000 Secured Non-Convertible Debentures of Rs.1,00,000/- each partly paid to the extent of Rs.75,000/- per Debenture aggregating Rs. 300,00,00,000/-

22. It is submitted that Transferee Company has 5 Equity Shareholders and consent affidavits from 4 of the shareholders constituting 75.84% in value have been obtained. It is further represented that the Transferee Company No.10 has eleven secured creditors and three unsecured creditors. The meeting of Equity shareholders of the Transferee Company No. 10 is proposed to be convened to consider and approve the proposed

scheme of Amalgamation. The certificate of chartered accountant in respect of creditors has also been placed on record. Out of 11 secured creditors 10 secured creditors constituting 99.99% in value have been obtained. All the 3 unsecured creditors have given their consent affidavits in favour of the Scheme. Therefore, transferee company seeks dispensation from holding and convening of their respective meetings as secured creditors constituting 99.99% in value and all the unsecured creditors have given consent affidavit in favour of Scheme.

23. We have perused the joint applications and the connected documents / papers filed herewith including the Scheme of Amalgamation contemplated between the Applicant companies. The Board of Directors of all the applicant companies vide separate meetings, held on 15.03.2021 respectively have unanimously approved the proposed Scheme of Amalgamation and copies of such board resolutions passed thereat have been placed on record by the companies.

24. The respective Memorandum and Articles of Associations of all the applicant companies have been placed on record. The applicants have also filed their audited financial statements for the year ending 31.03.2020 and provisional financial statements as on 31.01 2021.

25. The certificates of statutory auditors of all the applicant companies confirming that the accounting treatment in the scheme is in conformity with Section 133 of the Companies Act, 2013 have been placed on record.

26. It is submitted that the proposed merger is sought to be made under the provisions of Section 230 to 232 of the Companies Act, 2013, and the same if sanctioned by this Tribunal the appointed date as provided in the Scheme shall be April 1st, 2020.

27. All the companies have affirmed in this joint application that no investigation proceedings are pending under the provisions of the Companies Act against any of the applicant company.

28. The applicants further affirmed that the Scheme does not prejudicial to the interests of the shareholders, and creditors of the applicant companies. Rather, the same may be beneficial to all the applicant companies and their respective shareholders, and creditors.

29. Taking into consideration the aforesaid facts and circumstances, following directions are issued: -

A. In relation to Applicant Company No.1

i. With respect to Equity Shareholders:

Since it is represented by the Applicant Company-1 that there are 3equity shareholders in the Applicant Company-1 whose consents by

way of affidavits have been obtained and placed on record, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

ii. With respect to debenture holders:

Since it is represented by the Applicant Company-1 that there is only 1 debenture holder in the Applicant Company-1 whose consent by way of affidavit has been obtained and placed on record, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

iii. With respect to secured creditors:

Necessity for convening meeting of secured creditors does not arise as there is no secured creditor in Applicant Company-1.

iv. With respect to unsecured creditors:

Since it is represented by the Applicant Company-1 that there is only 1 unsecured creditor in the Applicant Company-1 whose consent by way of affidavit has been obtained and placed on record, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

B. In relation to Applicant Company No.2

i. **With respect to Equity Shareholders:**

The meeting of the Equity Shareholders shall be held at the registered office of the Transferee Company through Video Conferencing through remote e-voting on **03.03.2022 at 10:00 AM.** The quorum of the meeting shall be 2 in numbers or 75% in value.

ii. **With respect to Debenture Holders:**

Since it is represented by the Applicant Company-2 that there is 1 debenture holders in the Applicant Company-II whose consents by way of affidavit has been obtained and placed on record, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

iii. **With respect to secured creditors:**

Necessity for convening meeting of secured creditors does not arise as there is no secured creditor in Applicant Company-2.

iv. **With respect to unsecured creditors:**

Since it is represented by the Applicant Company-2 that there is only 1 unsecured creditor in the Applicant Company-2 whose consent by way of affidavit has been obtained and placed on record, therefore,

the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

C. In relation to Applicant Company No. 3

i. With respect to Equity Shareholders:

Since it is represented by the Applicant Company-3 that there are 6 equity shareholders in the Applicant Company-3 out of which 5 equity shareholders constituting 99.99% in value have given their consents by way of affidavits, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

ii. With respect to Debenture Holders:

Since it is represented by the Applicant Company-3 that there is 1 debenture holders in the Applicant Company-3 whose consents by way of affidavit has been obtained and placed on record, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

v. With respect to secured creditors:

Necessity for convening meeting of secured creditors does not arise as there is no secured creditor in Applicant Company-3.

vi. With respect to unsecured creditors:

Since it is represented by the Applicant Company-3 that there is only 1 unsecured creditor in the Applicant Company-3 whose consent by way of affidavit has been obtained and placed on record, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

D. In relation to Applicant Company No. 4

i. With respect to Equity Shareholders:

Since it is represented by the Applicant Company-4 that there are 6 equity shareholders in the Applicant Company-4 out of which 5 equity shareholders constituting 99.99% in value have given their consents by way of affidavits, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

ii. With respect to Debenture Holders:

Since it is represented by the Applicant Company-4 that there is 1 debenture holders in the Applicant Company-4 whose consents by way of affidavit has been obtained and placed on record, therefore,

the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

iii. With respect to secured creditors:

Necessity for convening meeting of secured creditors does not arise as there is no secured creditor in Applicant Company-4.

iv. With respect to unsecured creditors:

Since it is represented by the Applicant Company-4 that there is only 1 unsecured creditor in the Applicant Company-4 whose consent by way of affidavit has been obtained and placed on record, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

E. In relation to Applicant Company No. 5

i. With respect to Equity Shareholders:

The meeting of the Equity Shareholders shall be held at the Registered office of the Transferee Company through Video Conferencing through remote e-voting on **03.03.2022 at 1:00 PM**. The quorum of the meeting shall be 2 in numbers or 75% in value.

ii. With respect to Debenture Holders:

Since it is represented by the Applicant Company-5 that there is 1 debenture holders in the Applicant Company-5 whose consents by way of affidavit has been obtained and placed on record, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

iii. With respect to secured creditors:

Necessity for convening meeting of secured creditors does not arise as the sole secured creditor has been paid off by the Applicant Company-5.

iv. With respect to unsecured creditors:

Since it is represented by the Applicant Company-5 that there is only 1 unsecured creditor in the Applicant Company-5 whose consent by way of affidavit has been obtained and placed on record, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

F. In relation to Applicant Company No. 6

i. With respect to Equity Shareholders:

The meeting of the Equity Shareholders shall be held at the Registered office of the Transferee Company through Video

Conferencing through remote e-voting on **03.03.2022 at 4:00 PM**. The quorum of the meeting shall be 2 in numbers or 75% in value.

ii. With respect to secured creditors:

Necessity for convening meeting of secured creditors does not arise as there is no secured creditor in Applicant Company-6.

iii. With respect to unsecured creditors:

Since it is represented by the Applicant Company-6 that there is only 1 unsecured creditor in the Applicant Company-6 whose consent by way of affidavit has been obtained and placed on record, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

G. In relation to Applicant Company No. 7

i. With respect to Equity Shareholders:

Since it is represented by the Applicant Company-7 that there are 7 equity shareholders in the Applicant Company-7 all equity shareholders constituting 100% in value have given their consents by way of affidavits, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

ii. **With respect to secured creditors:**

Necessity for convening meeting of secured creditors does not arise as there is no secured creditor in Applicant Company-7.

iii. **With respect to unsecured creditors:**

Since it is represented by the Applicant Company-7 that there are 3 unsecured creditors in the Applicant Company-7 whose consent by way of affidavit have been obtained and placed on record, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

H. **In relation to Applicant Company No. 8**

i. **With respect to Equity Shareholders:**

The meeting of the Equity Shareholders shall be held at the Registered office of the Transferee Company through Video Conferencing through remote e-voting on **04.03.2022 at 10:00 AM**. The quorum of the meeting shall be 2 in numbers or 75% in value.

ii. **With respect to Debenture Holders:**

Since it is represented by the Applicant Company-8 that there is 1 debenture holders in the Applicant Company-8 whose consents by way of affidavit has been obtained and placed on record, therefore,

the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

iii. With respect to secured creditors:

Necessity for convening meeting of secured creditors does not arise as there is no secured creditor in Applicant Company-8.

iv. With respect to unsecured creditors:

Since it is represented by the Applicant Company-8 that there is only 1 unsecured creditor in the Applicant Company-8 whose consent by way of affidavit has been obtained and placed on record, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

I. In relation to Applicant Company No. 9

i. With respect to Equity Shareholders:

The meeting of the Equity Shareholders shall be held at the Registered office of the Transferee Company through Video Conferencing through remote e-voting on **04.03.2022 at 01:00 PM**. The quorum of the meeting shall be 2 in numbers or 75% in value.

ii. With respect to Debenture Holders:

Since it is represented by the Applicant Company-9 that there is 1 debenture holders in the Applicant Company-9 whose consents by way of affidavit has been obtained and placed on record, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

iii. With respect to secured creditors:

Necessity for convening meeting of secured creditors does not arise as there is no secured creditor in Applicant Company-9.

iv. With respect to unsecured creditors:

Since it is represented by the Applicant Company-9 that there are 3 unsecured creditors in the Applicant Company-9 whose consent by way of affidavit have been obtained and placed on record, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

J. In relation to Applicant Company No. 10

i. With respect to Equity Shareholders:

The meeting of the Equity Shareholders shall be held at the Registered office of the Transferee Company through Video

Conferencing through remote e-voting on **04.03.2022 at 04:00 PM**. The quorum of the meeting shall be 2 in numbers or 75% in value.

ii. **With respect to Debenture Holders:**

Since it is represented by the Applicant Company-10 that there are 3 debenture holders in the Applicant Company-10 whose consents by way of affidavit has been obtained and placed on record, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

i. **With respect to secured creditors:**

Since it is represented by the Applicant Company-10 that there are only 11 secured creditors out of which 10 secured creditors constituting 99.99% in value have given their consents by way of affidavits, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

ii. **With respect to unsecured creditors:**

Since it is represented by the Applicant Company-10 that there are only 3 unsecured creditors in the Applicant Company-10 whose consents by way of affidavit have been obtained and placed on

record, therefore, the necessity of convening and holding a meeting to consider and if thought fit for the approval of the Scheme is dispensed with.

K. Ms. Farah Hashmi, Advocate (Mobile No. 8600190514) is appointed as the Chairperson and Mr. U.N. Singh, Advocate (Mobile No. 9891249549) is appointed as the Additional Chairperson and Nitin Agarwal PCA (Mobile No. 9999451339) is appointed as Scrutinizer for the meetings to be held on 03.03.2022 of equity shareholders of Applicant Company No. 1, 5 and 6.

L. Mr. Shashank Shekhar Rawat, Advocate (Mobile No. 810540985)is appointed as the Chairperson and Mr. Parmod Sharma, Advocate (Mobile No. 999333228) is appointed as the Additional Chairperson and Ms. Shruti Rawat (Mobile No. 8377836964) is appointed as Scrutinizer for the meetings to be held on 04.03.2022 of equity shareholders of Applicant Company No. 8, 9 and 10.

M. In case the quorum as noted above for the above meetings of the respective Applicant Companies are not present at the meetings, then the meetings shall be adjourned by half an hour, and thereafter the persons present and voting shall be deemed to constitute the quorum. For the purpose of computing the quorum the valid proxies shall also be considered, if the proxy

in the prescribed form, duly signed by the person entitled to attend and vote at the meeting, is filed with the registered office of the concerned applicant companies at least 48 hours before the meetings. The Chairperson and Alternate Chairperson appointed herein along with scrutinizer shall ensure that the proxy registers are properly maintained.

N. The fee of both the Chairpersons for the aforesaid meetings shall be Rs. 1,50,000/- each and the fee of the both the Additional Chairpersons shall be Rs. 1,25,000/- each and the fee of both the Scrutinizers shall be Rs. 1,25,000/- each, in addition to meeting their incidental expenses. The Chairpersons will file their reports within a week from the date of holding of the above said meetings.

O. The individual notices of the said meetings shall be sent as required and prescribed by the Companies Act, 2013 through registered post or speed post or through courier or through e-mail, 30 days in advance before the scheduled date of the meeting, indicating the day, date, place and time as aforesaid, together with a copy of scheme of amalgamation, a copy of explanatory statement. The prescribed form of proxy shall be sent along with and in addition to the above documents, any other documents as may be prescribed under the Act may also.

P. The applicant companies shall publish advertisement with a gap of at least 30 clear days before the aforesaid meetings, indicating the day, date, place and time as aforesaid, to be published in the English Daily 'Business Standard' (Delhi Edition) and Hindi Daily 'Business Standard (Delhi Edition) stating the copies of Scheme, the Explanatory Statement required to be furnished pursuant to Section 230 of the Companies Act, 2013 and the form of proxy shall be provided free of charge at the registered office of the Applicant Companies.

Q. Voting will be made through remote e-voting process in compliance with the guidelines issued by the Ministry of Corporate Affairs in this regard.

R. The Companies shall individually send notice to the Central Government, the Income Tax Authorities, concerned Registrar of Companies, NCT of Delhi & Haryana, Official Liquidator, Income Tax Department and any sectoral regulators who may have significant bearing on the operation of the applicant companies along with copy of required documents and disclosures required under the provisions of Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

S. All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the

Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicants. The application stands allowed in the aforesaid terms.

Let the copy of the order be served to the parties.

-Sd-

(PRASANTA K UMAR MOHANTY)
Member (Technical)

-Sd-

DHARMINDER SINGH
Member (Judicial)